

Freedom-to-Operate Check

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Are you infringing someone else?

PROFESSIONAL DEFINITION

A Freedom-to-Operate (FTO) check assesses whether a product can be commercialised without infringing third-party intellectual-property rights, reducing the risk of litigation.

WHO DEVELOPED IT

A standard IP-management practice used widely in technology and pharmaceutical commercialisation.

WHY IT WAS DEVELOPED

It was developed to surface infringement risk before launch, when remedies are cheaper than after.

FIGURE 1 · FREEDOM-TO-OPERATE CHECK



Figure 1. A schematic of the Freedom-to-Operate Check as applied in BARBM312 (illustrative).

HOW IT IS USED

Relevant third-party rights are searched and analysed; the product is cleared, designed around obstacles, or licences are sought.

WHEN IT IS USED

Before launching or scaling an AI product.

BY WHOM IT IS USED

Legal, IP and product-launch teams.

INNOVATION RELATIVE TO THE PREDECESSOR TOOL

It brings disciplined infringement diligence to fast-moving AI launches, where training data and methods create novel exposure.

RELATED FRAMEWORKS IN THIS COURSE

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Licensing Models Map · Slibrary 16

Open-Source Compliance Ladder · Slibrary 16

AI Output Ownership Flow · Slibrary 16

SOURCES (HARVARD REFERENCING STYLE)

WIPO (2020) 'Freedom to operate', WIPO guidance.

Cornish, W., Llewelyn, D. and Aplin, T. (2019) Intellectual Property. London: Sweet & Maxwell.